

GUIDANCE FOR USE OF PRIVATE KEYS

THIS INFORMATION IS FOR GUIDANCE ONLY AND DOES NOT FORM PART OF ANY CONTRACT BETWEEN US. THE TERMS OF THE CONTRACT BETWEEN US IN RESPECT OF THE RADIX® WALLET SOFTWARE ARE SET OUT IN THE RADIX® WALLET SOFTWARE EULA (End-User Licence Agreement)

1 NO RETRIEVAL OF PRIVATE KEYS

KEEPING CREDENTIALS SAFE

When you set up your Radix® Wallet Software: (a) consider creating and committing to memory a strong PIN that you do not use for any other service or opt for Biometric log in; (b) if you decide to export your private key you should keep your 12-word Recovery Phrase secure and confidential; and (c) protect access to any device onto which Radix® Wallet Software has been installed.

2 KEEPING YOUR DEVICE SECURE

- 2.1 You are responsible for retaining sole possession and ownership of, and for securing, any device upon which the Radix® Wallet Software is loaded.
- 2.2 You are responsible for preventing any compromise, hacking, unauthorised or unlawful use of your device and for preventing the introduction of any malware, viruses or malevolent software onto that device.
- 2.3 If you are using our Website or have obtained this software via the Apple or Android stores, you must do so on a single device (one license per device) which is owned and controlled by you and which uses the Apple iPhone OS or Android operating systems. Neither Apple nor Google nor any third-party provider shall have any obligation to provide you with support or maintenance services regarding the use or operation of the Radix® Wallet Software.
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3 DEALING WITH THIRD PARTIES

- 3.1 The Radix® Wallet Software provides functionality that facilitates interaction with Smart Contracts, Components and “dApps” (Decentralised Applications). It is your responsibility to ensure that you correctly identify any intended counterparty, application or address, and that you identify who you are dealing with.
- 3.2 The Radix® Wallet Software enables you to maintain different “Personas” which comprise information that you may wish to pass to a website, portal or third party.

- 3.3 It is your responsibility to protect your personal information and to pass this only to third parties who you have verified to your satisfaction to be trustworthy.
- 3.4 Using the Radix® Wallet Software to initiate or perform any transaction involving crypto assets and/or send or receive crypto assets is at your exclusive risk.
- 3.5 You are solely responsible for verifying that the recipient address(es), dApp address(es), amounts and any transaction fees are correct when confirming the transaction in your Radix® Wallet, and that they match what was displayed when commencing the transaction on any relevant computer or device.

4 STAKING

- 4.1 The Radix® Wallet Software includes functionality that enables staking of Radix® (XRD) tokens and receiving rewards for doing so.
 - 4.2 Delegation of staking rights to a Validator Node (or any other type of Node Runner) does not give you any right to request payment of any kind but merely a potential right to share rewards from activity carried out by that Validator Node in accordance with any agreement you may enter into with that Validator Node.
 - 4.3 IF THE VALIDATOR NODE/NODE RUNNER IS DISHONEST AND/OR USES YOUR DELEGATED STAKE TO ATTACK OR UNDERMINE THE NETWORK YOUR DELEGATED STAKE CAN BE LOST.
 - 4.4 NEITHER RADIX® PUBLISHING LIMITED NOR ANY OTHER RADIX® COMPANY HAS ANY RESPONSIBILITY FOR THE ACTIONS OF 3RD PARTY NODE RUNNERS/VALIDATOR NODES.
 - 4.5 Rewards are determined by the current version of the network protocols adopted by the nodes and determined by community consensus.
 - 4.6 Validator fees, are calculated in the manner outlined here:
<https://learn.radixdlt.com/article/how-xrd-staking-emissions-rewards-are-calculated-for-token-holders>
 - 4.7 Radix® Proof-of-Stake presently requires an unstaking period of approximately 2 weeks during which time staked assets will be “locked” (restricted from any use, sale or transfer).
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Radix® Wallet Software EULA (End User Licence Agreement)

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The capitalised terms used in this agreement have the definitions/explanations found at <https://learn.radixdlt.com/> which are incorporated herein by reference.

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 - (ii) in the case of an alleged infringement of third-party intellectual property rights, the provision of a non-infringing version within a reasonable time.
- 7.5 We disclaim and exclude any duty of care or fiduciary duty that we may have to you other than as set out in this agreement.
- 7.6 The following types of loss are **wholly excluded** or shall be limited to the extent permitted by applicable law:
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 - (b) loss of any staking or other benefits or rewards and the loss or impairment of digital assets themselves;
 - (c) loss or damages attributable to the incorrect transmission, approval or signature of any transactions made using the Radix® Wallet Software;
 - (d) loss of anticipated gains, fees, awards or rewards attributable to the holding, sale, exchange, staking or transmission of digital assets, keys, seed phrases, or other security tokens or devices;
 - (e) loss of anticipated savings;
 - (f) loss of use or corruption of software, data or information;
 - (g) loss of or damage to goodwill;
 - (h) indirect or consequential loss;
 - (i) wasted expenditure;
 - (j) additional costs of procuring and implementing replacements, reconstitution or recovery of software, information or data including but not limited to consultancy costs, additional costs of management time and other personnel costs, and costs of equipment and materials; and
 - (k) losses incurred by you arising out of or in connection with any third-party claim against you which has been caused by any errors or omissions in relation to the creation or

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- 7.8 Nothing in this agreement shall limit or exclude either your or our liability to the extent that such liability cannot be lawfully limited or excluded.
- 7.9 The unenforceability or invalidity of any clause or part of these exclusions and limitations shall not invalidate or render any other clause or part invalid void or unenforceable.
- 7.10 In the event that a court of competent jurisdiction or an arbitrator determines that any of these provisions are invalid or unenforceable such clause or provision shall be limited to such scope duration and/or amount as the court or arbitrator determines to be valid and enforceable.

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9 CONFIDENTIALITY

If we obtain any confidential information concerning you or your affairs, we will keep such information confidential save that we may disclose it:

- (a) to our employees, officers, representatives, contractors, subcontractors or advisors who need to know such information for the purposes of undertaking their obligations under or in connection with this agreement; and/or
- (b) as may be required by law, a court or any governmental or regulatory agency or authority anywhere in the world.

10 TERMINATION

- 10.1 We may terminate this license at any time by giving you notice in accordance with clause 15.
- 10.2 You may terminate this license at any time by ceasing to use the Radix® Wallet Software and removing or deleting it from all devices owned or controlled by you.

- 10.3 Disposing of control, possession or ownership of any mobile device on which the Radix® Wallet Software is installed or purporting to assign, delegate control, or enabling or facilitating any other person to access or control access to such device permanently terminates this license with immediate effect.

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- 11.1 The license hereby granted is for your use only and your rights and entitlement to use this software may not be assigned, sub-contracted, delegated or transferred.
- 11.2 We may assign or transfer our rights and obligations under this agreement.
- 11.3 We may give you notice of assignment or transfer in accordance with clause 15. Upon giving you notice of such assignment/transfer to a third-party such transferee shall become responsible for the performance of our obligations and Radix® Publishing will be released from all future obligations.

12 ENTIRE AGREEMENT

- 12.1 This agreement (which includes the terms and definitions incorporated into it by reference) constitutes the entire agreement between you and us in respect of the Application Version of Radix® Wallet Software and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between the Parties, whether written or oral, relating to its subject matter.
- 12.2 You agree that:
- (a) you shall have no claim or remedy in damages or otherwise in respect of any statement, misstatement, representation, misrepresentation, assurance or warranty (whether made innocently or negligently) that is not set out in this agreement; and
 - (b) you shall have no claim or remedy in damages or otherwise for innocent, negligent misrepresentation or negligent misstatement based on any statement made to you, directly or indirectly, prior to entering into this agreement or included expressly or impliedly in this agreement.

13 NO WAIVER

- 13.1 Failure by either you or us to enforce of any obligations imposed on the other by this agreement, or any delay in doing so, shall not constitute a waiver of that obligation.
- 13.2 Each provision of this agreement operates separately.
- 13.3 If any court or competent authority decides that any one or more of the provisions is unlawful, invalid or unenforceable, but would be lawful, valid or enforceable if some part of it were deleted or modified, the provision in question shall apply with such deletion or modification as may be necessary to make it lawful, valid or enforceable, and the remaining conditions will remain in full force and effect.

14 CHANGES TO THIS AGREEMENT

14.1 We may modify the terms of this agreement at our sole discretion.

14.2 Changes to the terms of this agreement may be implemented in one of the following ways:

- (a) you download and install a new version or update of the Radix® Wallet Software, the terms included with that version or update of Radix® Wallet Software will replace these terms;
- (b) by us publishing terms applicable to Radix® Wallet Software on our website at <https://www.radixdlt.com/terms/walletEULA> or in relevant social media channels which are habitually used by users of the Radix® Wallet Software; or
- (c) by notifying you by e-mail or other medium where you have agreed to receive such notifications in accordance with our Privacy Policy,

each of which shall constitute adequate notice and be deemed to take effect when published. All changes will be effective 21 days from the date they are notified or published. If you do not accept the changes, you must cease using the Radix® Wallet Software within 21 days of notification/publication.

14.3 Your continued installation and use of the Radix® Wallet Software for more than 21 days after we provide notice of amended terms shall constitute acceptance of the amended terms.

14.4 If you do not accept any changes to these terms you must cease to use Radix® Wallet Software provided to you under this agreement.

14.5 This agreement does not give rise to any rights under the Contracts (Rights of Third Parties) Act 1999 to enforce any term within this agreement.

14.6 If you provide us with any feedback on the Radix® Wallet Software or any of our other products or services you grant to us the irrevocable right to use such ideas, information, solutions or code to develop or modify services and products and to create our own works based on such feedback.

14.7 All moral rights are waived. Without limiting the foregoing, we may use information received from you to test, develop, improve and enhance our products and services and all such developments modifications and improvements shall be owned by us and may be used by us without compensation to you.

15 NOTICES TO RADIX® PUBLISHING

15.1 Any notice you wish to give us must be in writing in English and may be delivered by email to:

- (a) hello@radixdlt.com

With a copy to:

- (b) notices@radixpublishing.com

15.2 by courier with certified delivery to:

- (a) First Floor La Chasse Chambers, 10 La Chasse, St Helier, JE2 4UE Jersey (C.I)

15.3 Notices to Radix® Publishing will be deemed effective on the first working day in England following:

- (a) the date of transmission if by e-mail; or
- (b) the date on which the courier confirms delivery.

16 NOTICES TO YOU

16.1 We may give you notice by:

- (a) posting these on our website at www.radixdlt.com/notices
- (b) in all other cases:
 - (i) by post to your last known address; or
 - (ii) via any other medium where you have agreed to receive such notifications in accordance with our Privacy Policy; or
 - (iii) via a posting or message in social media channels which we believe in good faith is likely to come to your attention.

16.2 Notices to you will be deemed effective on the date of posting on our website, within 5 working days of posting on any other medium and the first working day following the date of transmission (if by e-mail) or the date on which the courier confirms delivery.

17 INDEMNITY

You agree to defend, indemnify and hold harmless Radix® Publishing, its affiliates, licensors and service providers, and its and their respective officers, directors, employees, contractors, agents, licensors, suppliers, successors and assigns from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses or fees (including reasonable attorneys' fees) arising out of or relating to your violation of this Agreement or your use of any Website, Services or any other Products, including, but not limited to, any use of any Website's content, services and products other than as expressly authorized in this agreement or your use of any information obtained from Radix® Publishing.

18 COMPLAINTS PROCEDURE

You may refer any complaint or concern to us by emailing us at hello@radixdlt.com and we will endeavour to resolve the dispute in accordance with our complaints procedure, a copy of which is available here <https://www.radixdlt.com/complaints-procedure> (our "Complaints Procedure").

19 ALTERNATE DISPUTE RESOLUTION

- 19.1 Alternative dispute resolution is an optional process where an independent body considers the facts of a dispute and seeks to resolve it, without you having to go to court or arbitration.
- 19.2 You can submit a dispute to the alternative dispute resolution entity ("ADR entity") identified in our Complaints Procedure who will not charge you for making a complaint and the dispute

resolution process will be administered in accordance with any procedural rules set down by that ADR entity.

- 19.3 If either party is not satisfied with the outcome, that party may make a reference to arbitration in accordance with this agreement.

20 ARBITRATION

You can bring claims against us through arbitration in London, England.

- 20.1 If we identify any dispute with you, we will first seek to resolve that dispute in accordance with our Complaints Procedure unless we consider it reasonable to seek a court remedy known as an injunction in which case we will go directly to court.
- 20.2 If resolution is not possible or timely using our Complaints Procedure, we shall refer any dispute worth GBP 50,000 or less to an alternative dispute resolution entity but reserve the right to commence a reference to arbitration if we are not satisfied with the outcome.
- 20.3 Any dispute over the value of GBP 50,000 shall be referred to arbitration.
- 20.4 The value of any dispute shall be calculated on the basis on the closing price on the date upon which the dispute arose or the price of the last arm's length transaction for the digital asset prior to the date of reference.
- 20.5 All arbitrations shall be subject to the London Court of International Arbitration Rules which are deemed to be incorporated by reference into this clause.
- 20.6 The tribunal shall consist of one arbitrator. In default of agreement between you and us as to which arbitrator should be appointed, the appointing authority shall be the London Court of International Arbitration. The place of arbitration shall be London, England and the proceedings shall be conducted in English.
- 20.7 Irrespective of the form of resolution whether by a Court or Arbitrator the successful party shall be entitled to be awarded and to recover its legal costs and expenses.
- 20.8 The exclusive jurisdiction for arbitration or the commencement of any action shall be England and Wales.

21 JURISDICTION

- 21.1 It is agreed that situs of the agreement formed in accordance with this agreement, the place of delivery of Radix® Wallet Software, and the situs of any transaction effected using Radix® Wallet Software including the creation of any debt or obligation and the situs of any property or rights in any token, digital asset, crypto-currency and/or cryptographic key is to be England and the performance and the operation of Radix® Wallet Software and any losses or damage arising from the use of such software shall be deemed to occur in England.
- 21.2 Nothing in this clause 21 shall limit or exclude our entitlement or ability to enforce any rights to any intellectual property in any territory in relation or accordance with the laws application to such rights that subsist in any territory.

- 21.3 This agreement and any dispute or claim or complaint arising out of or in connection with it, its subject matter or its formation (including contractual and non-contractual disputes) will be exclusively governed by and construed in accordance with the laws of England and Wales.
- 21.4 The 1980 United Convention on Contracts for the International Sale of Goods and its related instruments will not apply to this agreement.
- 21.5 All operation of conflict of laws is excluded.

22 WAIVER OF CLASS ACTIONS/ALTERNATE JURISIDCTIONS

- 22.1 You irrevocably waive on behalf of yourself and your successors in title, trustees, assigns, including any person, group or body appointed under any bankruptcy or insolvency rules:
- (a) all rights to bring or participate in any class action;
 - (b) any right to request a jury trial against us or other Radix® affiliates or entities;
 - (c) all rights and entitlement to seek or participate in, commence or pursue any action or seek any order or remedy in any territory (other than England) which may, or is intended to, or is framed so as to be, binding upon the property, assets or rights of Radix® Publishing, its officers, directors, employees, agents or affiliates; and
 - (d) all rights to assert personal and or subject matter jurisdiction in any territory other than England.

[SCROLL DOWN TO ACCEPT TERMS AND INCLUDE]

I CONFIRM THAT I HAVE READ AND AGREE TO ABIDE BY THIS AGREEMENT